SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 9871 of 2020 (YEAR: 2011)

CORAM: R.V. RAVEENDRAN, H.L. GOKHALE

Raj Kumar
... Appellant(s) / Petitioner(s)
Versus
Ajay Kumar
... Respondent(s)

Acts Referred:	Motor Vehicles Act, 1988
Sections:	Section 166 Motor Vehicles Act

JUDICIAL HEADNOTE & SUMMARY

Distinguished between medical physical impairment and functional disability affecting earning capacity, prescribing guidelines for assessment in injury claims.

RATIO DECIDENDI

The Court held that: Distinguished between medical physical impairment and functional disability affecting earning capacity, prescribing guidelines for assessment in injury claims. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Raj Kumar v. Ajay Kumar (Civil Appeal No. 9871 of 2020) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Motor Vehicles Act, 1988, particularly Section 166 Motor Vehicles Act. Distinguished between medical physical impairment and functional disability affecting earning capacity, prescribing guidelines for assessment in injury claims.

OPERATIVE ORDER

ORDER: Decided